



CHAPTER lii.

An Act for vesting the undertaking of the Harrow and Uxbridge Railway Company in the Metropolitan Railway Company to provide for the consolidation of certain preference stocks of the Company to raise additional capital and for other purposes. [30th June 1905.] A.D. 1905.

WHEREAS the Harrow and Uxbridge Railway Company (in this Act called "the Harrow Company") were incorporated by the Harrow and Uxbridge Railway Act 1897 (in this Act called "the Act of 1897") for the purpose of making and maintaining a railway in the said Act referred to as Railway No. 1 commencing in the parish of Harrow-on-the-Hill by a junction with Railway No. 3 authorised by the Ealing and South Harrow Railway Act 1894 at the termination thereof and terminating at Uxbridge with a share capital of two hundred and twenty thousand pounds in twenty-two thousand shares of ten pounds each and with power to borrow seventy-three thousand pounds on mortgage or by debenture stock and by the same Act heads of agreement dated the nineteenth day of July one thousand eight hundred and ninety-seven made between the Metropolitan District Railway Company (in this Act called "the District Company") and the promoters of the Bill for the Act of 1897 for and on behalf of the Harrow Company and scheduled thereto was confirmed:

And whereas by the Harrow and Uxbridge Railway Act 1899 (in this Act called "the Act of 1899") the Harrow Company were authorised to make and maintain among other railways the railway in the said Act referred to as Railway No. 1 between a junction with the railway authorised by the Act of 1897 at a point therein described and a junction with the railway of the

A.D. 1905. Metropolitan Railway Company (in this Act called "the Company") at a point therein described near their Harrow station and to raise one hundred and twenty thousand pounds additional capital and to borrow forty thousand pounds on mortgage or by debenture stock and by section 31 of the same Act the said agreement scheduled to and confirmed by the Act of 1897 was repealed and in lieu thereof the heads of agreement between the Harrow Company and the Company (in this Act called "the two Companies") dated the nineteenth day of June one thousand nine hundred and ninety-nine (in this Act called "the agreement of 1899") and contained in the schedule to the Act of 1899 were thereby confirmed and by section 32 of the same Act the District Company were empowered at the time in the manner and subject to the terms therein mentioned to run over and use the railway authorised by the Act of 1897 and by section 33 of the same Act power was conferred upon the Company at any time if authorised by Parliament to take over the undertaking of the Harrow Company upon the basis stipulated in Article 7 of the agreement of 1899 subject to the running powers and rights of the District Company:

And whereas by the agreement of 1899 it was inter alia agreed that the railways authorised by the Acts of 1897 and 1899 should be constructed by the Harrow Company and subject to the running powers of the District Company over the railway authorised by the Act of 1897 be exclusively used managed and worked by the Company as from the date of the Board of Trade certificate of completion and that the Company should thereafter pay to the Harrow Company by half-yearly payments interest at the rate of three pounds per centum per annum on a capital sum representing the total cost of acquiring lands for and of constructing and opening the railways including interest at the rate aforesaid upon the amount from time to time expended during construction:

And whereas by the Metropolitan Railway Act 1901 (in this Act called "the Act of 1901") the two Companies were authorised to make and maintain in connexion with the railways authorised by the Acts of 1897 and 1899 the deviation railway and works therein described and by section 36 of the Act of 1901 to abandon the construction of certain railways and works therein described and by section 42 of the Act of 1901 the two Companies were authorised to apply for any of the purposes of that Act to which capital was properly applicable any moneys

A.D. 1905.

which they or either of them had raised or were authorised to raise and by section 43 of the Act of 1901 the Company were empowered as therein mentioned to subscribe towards the undertaking of the Harrow Company sums not exceeding in the whole two hundred thousand pounds and after such subscription to exercise the powers of the Harrow Company with respect to the construction of the railways of that Company authorised by the Acts of 1897 1899 and 1901 and by section 51 of the Act of 1901 power was conferred upon the Company to invest in such securities and in such manner as they might determine all or any part of the moneys deposited in any savings bank or provident fund established in pursuance of sections 23 and 24 of the Metropolitan Railway Act 1873 or received by them thereafter subject to their being primarily responsible for all such moneys and to the obligation to guarantee and be responsible for the interest on the moneys so deposited :

And whereas by section 30 of the Metropolitan Railway Act 1877 the Company were authorised to form a reserve fund and to invest the same and the annual income derived therefrom or any part thereof in such securities as they should think fit :

And whereas the said railways and works have been constructed and opened for passenger traffic and the undertaking of the Harrow Company is used managed and worked by the Company :

And whereas the schedule to this Act contains a statement of the particulars of the capital issued and raised by the Harrow Company :

And whereas the Company have subscribed for or invested in and now hold by themselves or their nominees the shares and securities of the Harrow Company mentioned in the third column of the said schedule and it is expedient that the Harrow Company should be amalgamated with the Company in manner provided by this Act :

And whereas it is expedient that provision should be made for the conversion of certain of the preference stocks of the Company now respectively carrying interest at three and a half per cent. per annum into one consolidated preference stock bearing interest after the same rate and that such consolidated stock should be vested in the holders of the existing stocks in substitution for their present holdings :

And whereas it is expedient that the other powers in this Act mentioned should be conferred on the Company :

A.D. 1905.

And whereas it is expedient that the Company should be authorised to raise additional capital and to apply the same for the purposes of this Act and for the equipment of the railways of the Company for electric traction and for the general purposes of their undertaking :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited for all purposes as the Metropolitan Railway Act 1905.

Act divided into Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Amalgamation of the undertaking of the Harrow Company with the undertaking of the Company.

Part III.—Finance and Miscellaneous.

Incorporation of general Acts.

3. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters namely :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital; A.D. 1905.

The consolidation of the shares into stock;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

Part V. (relating to amalgamation) of the Railways Clauses Act 1863:

And Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction: Interpretation.

The expression "the Company" means the Metropolitan Railway Company;

The expression "the Harrow Company" means the Harrow and Uxbridge Railway Company;

The expression "the two Companies" means the Metropolitan Company and the Harrow Company;

The expression "the District Company" means the Metropolitan District Railway Company;

The expression "the Act of 1897" means the Harrow and Uxbridge Railway Act 1897;

The expression "the Act of 1899" means the Harrow and Uxbridge Railway Act 1899;

The expression "the Act of 1901" means the Metropolitan Railway Act 1901;

The expression "the Act of 1904" means the Metropolitan Railway Act 1904;

The expression "the agreement of 1899" means the agreement scheduled to the Act of 1899;

The expression "the date of amalgamation" means the first day of July 1905.

A.D. 1905.

PART II.

AMALGAMATION OF THE UNDERTAKING OF THE HARROW COMPANY
WITH THE UNDERTAKING OF THE COMPANY.

Undertaking
of Harrow
Company
amalgama-
ted with
undertaking
of Company.

5. The undertaking of the Harrow Company shall subject to the contracts obligations debts and liabilities of that company be amalgamated with and form part of the undertaking of the Company subject nevertheless to the provisions of this Act and such amalgamation shall take effect as on and from the date of amalgamation and as on and from that date the Harrow Company is hereby dissolved except for the purpose of winding up its affairs.

Harrow Com-
pany to receive
revenue and
pay debts up to
date of amal-
gamation.

6. The Harrow Company shall be entitled to all its revenues and shall discharge and relieve the Company of all the contracts obligations debts and liabilities of the Harrow Company up to the date of amalgamation.

Cancellation of
shares and de-
benture stock
of Harrow
Company held
by Company.

7. As from the date of amalgamation the shares and debenture stock of the Harrow Company held by or on behalf of the Company and specified in the third column of the schedule to this Act shall be and the same are hereby cancelled.

Shares of
Harrow
Company
not held by
Company
to be ex-
changed for
debenture
stock of
Company.

8. As on and from the date of amalgamation the several holders of the amount mentioned in the fourth column of the schedule to this Act of the shares of the Harrow Company described or referred to in the first column of the said schedule shall in lieu of and exchange for the shares held by them respectively become and be the holders of the debenture stock of the Company specified in the fifth column of the said schedule as intended to be issued to the holders of the amounts mentioned in the said fourth column and every holder of the shares of the Harrow Company shall be credited in the books of the Company as and shall be deemed to be the holder of so much of the said debenture stock as will at the rate of three and a half per centum per annum yield him the same annual return as his holding of the said shares.

Fractional
parts of a
pound of
debenture
stock.

9. Notwithstanding anything in this Act contained no person shall become entitled under this Act to any fractional part of a pound of the debenture stock of the Company to be issued as aforesaid but in every case in which any such person would but for this enactment have become entitled to a fractional part of a pound of any such stock the Company may at their option receive

from such person such a further sum in cash as will make up an even pound or pay to such person in cash the amount of such fractional part.

A.D. 1905.

10. On and after the date of amalgamation every holder of shares in the capital of the Harrow Company in exchange for which stock of the Company is to be issued under this Act shall upon the delivery of the certificate for the same to the Company be entitled to receive and shall receive instead thereof from the Company the certificate for the stock of the Company to which such holder is entitled under the provisions of this Act and the certificate for the shares in the capital of the Harrow Company shall upon such exchange be cancelled.

Certificates
of shares
&c. to be
exchanged.

11. If any certificate for shares in the capital of the Harrow Company be lost or destroyed then upon proof thereof and upon an indemnity being given against any claim in respect of any such lost or destroyed certificate to the satisfaction of the directors of the Company the Company shall deliver to the person entitled to any such certificate a certificate for the stock of the Company to which he would be entitled under this Act as if such first-mentioned certificate had been delivered by him as herein-before provided.

Provision
as to lost
certificates.

12. All stock issued to holders of shares of the Harrow Company under the provisions of this Act shall be held subject to the same trusts and obligations as those upon or to which the shares of the Harrow Company in respect of which such stock is substituted was immediately before the date of amalgamation held or subject and so as to give effect to and not to revoke any deed or other instrument or any testamentary disposition of or affecting any such shares of the Harrow Company and every deed or other instrument or testamentary disposition of or affecting such shares shall take effect with reference to the whole or a proportionate part of the stock so substituted therefor as the case may be.

Substituted
stock to be
held on same
trusts as
shares for
which it is
substituted.

13. Trustees executors and administrators being holders of any shares of the Harrow Company may and shall accept the stock of the Company to be issued under the provisions of this Act to the several holders of the shares of the Harrow Company in substitution for such shares and may and shall hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the shares for which such stock of the Company is hereby substituted.

Trustee
shareholders
of Harrow
Company to
accept sub-
stituted
stock.

A.D. 1905.

Capital powers
of Harrow
Company
repealed.

14. All unexercised powers (if any) of raising money conferred upon the Harrow Company by any Act of Parliament are subject to the provisions of this Act hereby cancelled.

Power to
create debenture
stock in
substitution
for shares
and debenture
stock of Harrow
Company.

15. On and after the date of amalgamation the Company may create and issue three and a half per centum debenture stock to the nominal amount of three hundred and eighty thousand pounds in lieu of and in substitution for the shares and debenture stock of the Harrow Company cancelled or exchanged under the provisions of this Part of this Act. Provided always that any such debenture stock shall be deemed to be part of and shall rank *pari passu* with the existing Metropolitan Railway Three and a Half per Centum A Debenture Stock.

Saving for
Postmaster-
General.

16. Nothing in this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertaking of the Harrow Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertaking of the Harrow Company is amalgamated with the undertaking of the Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

PART III.

FINANCE AND MISCELLANEOUS.

For consoli-
dation of
convertible
preference
stocks.

17.—(1) On and from the second day of October one thousand nine hundred and five the following stocks of the Company (namely):—

Five hundred thousand pounds three and a half per centum convertible preference stock; and

Seven hundred and fifty thousand pounds three and a half per centum convertible preference stock (second-issue); or such less amount of the said stocks as shall then exist shall by force of this Act alone be converted into one consolidated stock which shall be thenceforth known and is hereinafter referred to as the "Metropolitan Railway Three and a Half per Centum Convertible Preference Stock."

A.D. 1905.

(2) Every holder of either of the stocks so to be converted and consolidated as aforesaid shall after such conversion and consolidation be credited in the books of the Company with Metropolitan Railway Three and a Half per Centum Convertible Preference Stock to the same nominal amount as and in lieu of the stock so to be converted and shall have the option to convert his holding of such consolidated stock into ordinary stock centum per centum at any time.

(3) The Metropolitan Railway Three and a Half per Centum Convertible Preference Stock shall bear a dividend of three and a half per centum per annum and shall rank next after the Metropolitan Railway Three and a Half per Centum A Preference Stock.

(4) The Company shall not be required to issue any certificate for the Metropolitan Railway Three and a Half per Centum Convertible Preference Stock in substitution for the existing stock in respect of which such certificate is to be issued unless and until the certificate of the existing stock is given up to be cancelled or if such certificate be alleged to be lost or destroyed unless and until such loss or destruction is proved to the satisfaction of the Company and such indemnity given as the Company shall reasonably require.

18. The stock by this Act substituted for any existing stock shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those on or to which such existing stock was held immediately before the substitution and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting such existing stock and every such deed will or other instrument or testamentary or other disposition shall take effect with reference to the whole or a proportionate part as the case may be of the substituted stock.

Substituted stock to be held on same trusts &c. as existing stock.

19. The Company shall call in the certificates of stock for which stock is substituted by this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of stock of the respective amounts to which those proprietors are by this Act respectively entitled but no stockholder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors

Certificates of stock to be called in and others issued.

A.D. 1905. of the Company the loss or destruction thereof. Provided that until the issue of such new certificates the holders of the existing certificates shall (according to the amounts of stock to be substituted by virtue of this Act for the existing stock which they respectively represent) have and possess the same rights and advantages as if such existing certificates were certificates for the respective amounts of stock created and substituted by virtue of this Act but if any such holder neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the stock so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

Power of
trustees exe-
cutors &c.
to accept
new stock.

20. Trustees, executors, administrators and all other holders in any representative or fiduciary capacity of existing convertible preference stocks of the Company are hereby expressly authorised to apply for accept and hold any stock issued in exchange therefor under the powers of this Act and to enter into agreements for the purposes of this Act and are hereby indemnified for all acts bonâ fide done by them in pursuance of the provisions of this Act.

Transfers
of stock
although by
present name
to be valid.

21. All transfers or other dispositions of either of the existing convertible preference stocks of the Company shall after the consolidation thereof and notwithstanding this Act be valid and have due effect given to them respectively as transfers or dispositions of the respective amounts of stocks to be substituted by virtue of this Act for the stock thereby expressed to be transferred or disposed of although the instrument transferring or disposing of the same shall describe the same by the name or denomination which the stock transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific nominal amount of any such existing stock shall be held to apply to a nominal amount of stock equal to that into which such existing stock shall have been converted by this Act.

Power to
apply corpo-
rate funds to
purposes of
Act.

22. The Company may appropriate and apply to the purposes of this Act or to the general purposes of their undertaking to which capital is properly applicable any moneys which they

now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any Acts relating to the Company and which may not be required for the purposes to which they are by any such Acts made specially applicable. A.D. 1905.

23. The Company may subject to the provisions of Part II. of the Companies Clauses Act. 1863 from time to time raise any additional capital not exceeding in the whole eight hundred thousand pounds exclusive of the other capital and other moneys which they are authorised to create and issue by this Act by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof. Power to raise additional capital.

24. Any stock which under the provisions of this Act or any other Act or Acts of Parliament passed before or after the passing of this Act may be created by the Company for the purpose of raising additional capital may if issued as a three and a half per centum preference stock be of the same class and description as and be deemed to be part of and rank *pari passu* with and confer the like privileges and bear the same dividend and be subject to the like restrictions as the existing Metropolitan Railway Three and a Half per Centum A Preference Stock and if issued as a three and a half per centum convertible preference stock be of the same class and description as and be deemed to be part of and rank *pari passu* with and confer the like privileges and bear the same dividend and be subject to the like restrictions as the Metropolitan Railway Three and a Half per Centum Convertible Preference Stock by this Act authorised to be created. Provisions as to issue of additional preference stock.

25. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock.

New shares or stock to form part of capital of Company.

26. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on new shares or stock.

27. Every person who becomes entitled to such new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

New and existing shares or stock may be of same class.

28. Subject to the provisions of any Act already passed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Act and any other Act passed in the present session of Parliament whether before or after the passing of this Act by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by any such other Act and this Act respectively authorised to raise by the creation and issue of new shares or stock.

Issue of capital and exercise of borrowing powers.

29. The Company may from time to time issue and dispose of any capital which they are authorised to raise at such times to such persons on such terms and conditions at such price above or below the nominal amount and in such manner as the directors think advantageous to the Company and the Company may create and issue debenture stock for the money which they are authorised to borrow notwithstanding that the stock in respect of which it is authorised to be borrowed is issued at a discount.

Power to borrow.

30. The Company may borrow on mortgage of their undertaking in addition to any other sums which they are or may be authorised to borrow by any other Act or Acts of Parliament any sum or sums not exceeding in the whole one third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock. But no part thereof shall be borrowed until shares or stock for the whole of the said capital shall have been issued and a sum equal to one half of such capital shall have been paid in respect of such shares or stock and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies.

that such shares or stock as the case may be were issued and accepted and are held bonâ fide by the persons to whom the same were issued or their executors administrators successors or assigns and that the said sum has been paid in respect thereof and upon production to such justice of the books of the Company and of such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. A.D. 1905.

31. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

32. Any debenture stock which under the provisions of this Act or any other Act or Acts of Parliament passed before or after the passing of this Act may be created or issued by the Company may if issued as a three and a half per centum debenture stock be of the same class and description in all respects as and may be in addition to and form part of the existing Metropolitan Railway Three and a Half per Centum A Debenture Stock. Provisions as to issue of debenture stock.

33. If any money is payable to a stockholder shareholder mortgagee or debenture stockholder in the Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

34. Every provision in any Act passed before the present Session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of principal money or interest or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may For appointment of a receiver.

A.D. 1905. — have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Existing mortgages to have priority.

35. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament passed before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application of moneys.

36. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act and to the equipment of the railways of the Company for electric traction and to the general purposes of the Company being in each case purposes to which capital is properly applicable.

Interest not to be paid out of capital.

37. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder or stockholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for future Bills not to be paid out of capital.

38. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

39. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

A.D. 1905.

Provision as
to general
Railway
Acts.

40. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1905.

The SCHEDULE referred to in the foregoing Act.

1. Description of Capital of Harrow Company.	2. Amount issued.	3. Amount held by or on behalf of Metropolitan Company and to be cancelled.	4. Amount held otherwise than by or on behalf of Metropolitan Company.	5. Stock of Metropolitan Company to be issued to Holders of Amount in Column 4.
3 per cent. guaranteed shares of £10 each.	£ 340,000	£ 293,100	£ 46,900	£ 40,200 Metropolitan Railway 3½ per Cent. A Debenture Stock.
3 per cent. debenture stock.	104,165	104,165	—	—

Printed by EYRE and SPOTTISWOODE,
FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.